

Amendment No. 1 to SB1626

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1626*

House Bill No. 1775

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 56, Chapter 7, Part 10, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Cost-sharing requirement" means a deductible, coinsurance, copayment, or any similar out-of-pocket expense;

(2) "Evidenced-based cancer imaging" means evidence-based cancer imaging modalities in accordance with the most recent version of the National Comprehensive Cancer Network (NCCN) clinical practice guidelines;

(3) "Genetic testing for an inherited mutation" means germline, multi-gene testing for an inherited mutation associated with an increased risk of cancer in accordance with evidence-based, clinical practice guidelines;

(4) "Health plan" means a policy, contract, certification, or agreement offered or issued by an insurer pursuant to a state insurance program under title 8, chapter 27, to provide, deliver, arrange for, pay for, or reimburse any of the costs of healthcare services for employees of this state;

(5) "Healthcare service" means an item or service furnished to an individual for the purpose of preventing, diagnosing, alleviating, curing, or healing human illness, injury, or physical disability; and

(6) "Insurer" means an entity subject to the insurance laws and rules of insurance in this state or subject to the jurisdiction of the commissioner, that

contracts or offers to contract to provide, deliver, arrange for, pay for, or reimburse the costs of healthcare services under a health plan in this state.

(b) Cost-sharing requirements must not apply to coverage under a health plan, or an insurer offering a health plan, that provides coverage for:

(1) Clinical genetic testing for an inherited gene mutation for an individual with a personal or family history of cancer that is recommended by a healthcare professional; and

(2) Evidenced-based cancer imaging for an individual with an increased risk of cancer as recommended by NCCN clinical practice guidelines.

(c) If, under federal law, application of subsection (b) would result in health savings account ineligibility under § 223 of the federal internal revenue code (26 U.S.C. § 223), then this requirement applies for health savings account-qualified high deductible health plans with respect to the deductible of such a plan after the enrollee has satisfied the minimum deductible under § 223 of the federal internal revenue code (26 U.S.C. § 223), except for items or services that are preventive care pursuant to § 223(c)(2)(C) of the federal internal revenue code (26 U.S.C. § 223(c)(2)(C)), in which case the requirements of subsection (b) apply regardless of whether such minimum deductible has been satisfied.

SECTION 2. This act takes effect January 1, 2027, the public welfare requiring it, and applies to plans issued, amended, or renewed on or after that date.